How to Avoid Immigration Scams and Get Real Help

Scammers know that the immigration process is complicated. They use the confusion it creates to pretend to take advantage of people seeking help. Here are some examples of common immigration scams, advice on how to spot and avoid them, and where to get real help. Examples of Immigration Scams

Notary or immigration consultant scams. In the United States, only an immigration lawyer or an individual authorized by the U.S. Department of Justice (DOJ, Department of Justice) can give you immigration advice. But scammers will try to deceive immigrants by posing as a notary, public notary, accountant, or consultant. In Latin American countries, the term notary or public notary means the individual is a lawyer or has legal training, but this does not apply in the United States.

Only lawyers or individuals accredited by the U.S. Department of Justice and working for recognized organizations can provide you with legal advice.

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Others will just take your money. Sometimes, their incorrect advice can ruin your chances of migrating legally or fixing your legal status. The DOJ has a full list of accredited individuals and recognized organizations. Read this graphic novel in English, also available in Spanish, to learn more about how to spot and avoid notary scams. Order free copies to distribute in your community. What you need to know:

• Do not go to a notary, accountant, or consultant for immigration or legal help. See the advice below on how to obtain real help.

• Do not sign blank immigration forms or forms with incorrect information about you or your situation. A dishonest notary, accountant, or consultant may have them made for you.

• Do not pay for immigration forms. Official forms are free from U.S. Citizenship and Immigration Services (USCIS, U.S. Citizenship and Immigration Services).

• Do not allow a notary or anyone to keep your original documents.

Fake immigration websites When you are looking for help with immigration, you may find websites that appear to be connected to USCIS — but they are not. They may use names such as "Immigration in the U.S." and display images of the American flag or the Statue of Liberty (Statue of Liberty). However, if the website address does not end in .gov, it is not a federal government website and is not connected to USCIS. The site may charge you for forms that are actually free from the government, and your personal information may be stolen. What you need to know:

- Addresses of genuine U.S. government websites end in .gov.
- USCIS forms are free. If you have to pay to download government immigration forms, you are not on a legitimate website.
- You can find genuine immigration information on the USCIS website.

Scams involving the Diversity Visa Lottery

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- You can enter the visa lottery
  - or only once per **year**

- Winners are chosen at random and no one can influence the results.

- You can check the status of your entry only at dvprogram.state.gov.

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The U.S. Department of State (U.S. Department of State) manages the Diversity Visa Program (Diversity Visa Program). Some people refer to this program as the 'visa lottery' or 'visa lottery'. Entry is free. Winners, selected randomly, will have the opportunity to apply to become lawful permanent residents. However, scammers try to deceive people by charging money to apply to the program, promising special access, or claiming they can increase a person's chances of winning the lottery. But there is no special access, and no one can increase your odds of winning. What you need to know:

- or only at dvprogram.state.gov

• or only if you are from a qualified country and meet the educational or employment requirements

• You do not have to pay to apply for the visa lottery.

Scams Against Refugees

Refugees — people forced to leave their country to escape war, persecution, or natural disaster — are also targets of scams. Refugees have a different legal status than other immigrants, but scammers do not care. They will tell refugees that they are eligible for a special government program, but to get the money they first need to pay a fee. Or, the scammers may say they are from the IRS and need the individual's bank account number to deposit the promised money. But there is no special program. And if someone tells you that you need to pay them via a gift card, wire transfer, or cryptocurrency — to help you with your immigration status or for any reason — that is also a scam. What you need to know:

The choice of the right person is as important as filling out the correct form, or filling it out in the correct way. Even people with good intentions, such as a friend or family member who wants to help you with immigration processing, can cause problems for you later. For example, an individual helping you with forms may write or translate what you ask them to do but is not qualified to give you advice on what to say or which form to use. Take some time to find genuine help for your immigration situation. Look for people who are authorized to help.

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• If you are a refugee and someone contacts you about government assistance, immediately speak with the case manager at your resettlement agency.

• Do not pay for immigration assistance using a gift card, money transfer, payment app, or cryptocurrency. You are transacting with a scammer.

• Find more information for refugees on the USCIS website: Frequently Asked Questions: Refugees. Get Real Help

Only a lawyer or an accredited representative working for an organization recognized by the U.S. Department of Justice is authorized to give you legal advice about immigration. Working with them will also help protect you from people who may deceive you.

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- Look at this list from the American Immigration Lawyers Association

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- **An accredited** representative is not a lawyer but is authorized to provide immigration **advice.** The organizations they work for may charge you.

  - The accredited representative must work for an organization recognized by the DOJ.

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You may represent yourself in immigration proceedings, if you choose. Start by reviewing the section, Explore My Options (Examine My Options), on the USCIS website. What you need to know:

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• The **lawyer** must be a member of the professional association in his state. Make sure the lawyer you choose has a **good** standing in the association.

o To find an immigration lawyer who is free or charges low fees, look at this list for each state from the U.S. Department of Justice.

(American Immigration Lawyers Association) to find an immigration lawyer in your area. These lawyers will charge you.

o Find the organizations recognized in your area on the page of

Recognition & Accreditation Program on the DOJ website. Do it yourself

• Immigration forms are free. Never pay to obtain official forms. You will likely need to pay filing fees when you submit your completed forms to USCIS.

• If you have questions, use the Tools section on the USCIS website or get more resources on the USCIS Avoid Scams page.

• Call the USCIS Contact Center at 800-375-5283 if you need information that you cannot find online. (If you are deaf, hard of hearing, or have a speech impairment, use the text telephone (TTY) number: 800-767-1833.)

Report the Scams Against Immigrants

If you or someone you know has witnessed or experienced a scam related to immigration, it is important to report it to

Find more information about common immigration scams on the USCIS website.

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• **the Federal Trade Commission (FTC, Federal Trade** Commission) at 877-382-4357. Press 3 to choose a **language and then** press 2 for Tagalog — or go to ReportFraud.ftc.gov. When you report a scam, provide as **much or as little** information about yourself as you are comfortable with. Or ask your immigration lawyer to use **his name,** or the name of his law firm or agency, to report it to the FTC.

• **your local or state authorities**